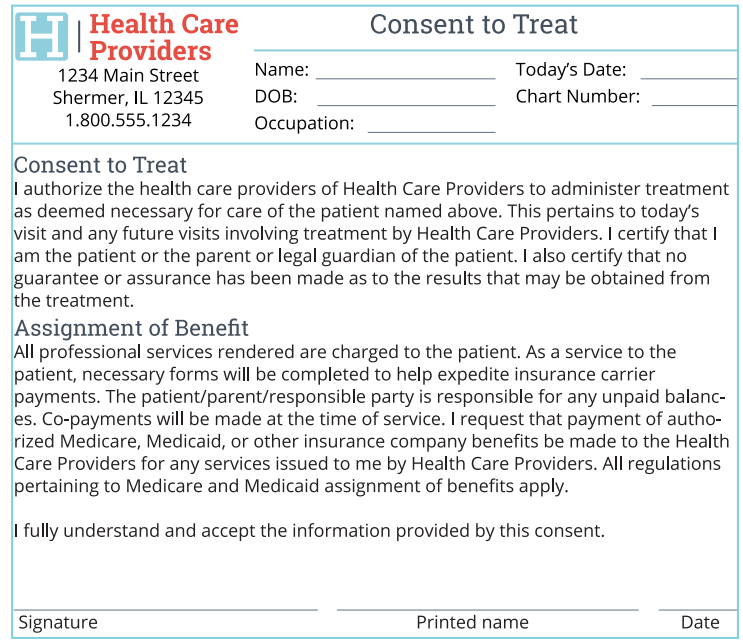
RECEIVE CONSENT

Introduction

Obtaining consent before a medical procedure is a fundamental ethical and legal requirement in health care. This is particularly important in phlebotomy, where the act of drawing blood must be agreed upon by the patient. Consent ensures that patients are informed and willing participants in their health care decisions. This lesson outlines the various forms of consent and the importance of securing such consent prior to blood collection, as well as the special considerations required when dealing with minors or in emergency situations.



Health Care Providers
1234 Main Street
Shermer, IL 12345
1.800.555.1234

Consent to Treat

Name: _____ Today's Date: _____
DOB: _____ Chart Number: _____
Occupation: _____

Consent to Treat

I authorize the health care providers of Health Care Providers to administer treatment as deemed necessary for care of the patient named above. This pertains to today's visit and any future visits involving treatment by Health Care Providers. I certify that I am the patient or the parent or legal guardian of the patient. I also certify that no guarantee or assurance has been made as to the results that may be obtained from the treatment.

Assignment of Benefit

All professional services rendered are charged to the patient. As a service to the patient, necessary forms will be completed to help expedite insurance carrier payments. The patient/parent/responsible party is responsible for any unpaid balances. Co-payments will be made at the time of service. I request that payment of authorized Medicare, Medicaid, or other insurance company benefits be made to the Health Care Providers for any services issued to me by Health Care Providers. All regulations pertaining to Medicare and Medicaid assignment of benefits apply.

I fully understand and accept the information provided by this consent.

Signature Printed name Date

Obtaining Consent

Before initiating a blood draw, it is crucial to secure the patient's consent. Proceeding without consent could be considered battery, a legal offense. Consent can be categorized as follows.

Informed Consent

The patient is thoroughly briefed about the procedure in clear, understandable language. This requires that the patient be provided with adequate information regarding the method, risks, and outcomes of the procedure. Informed consent is typically documented in writing and is often necessary for procedures that are high risk, invasive, or surgical.

Expressed Consent

The patient explicitly agrees to the procedure, either verbally or in writing, often through a consent form. Written consent provides protection for both the treatment provider and the patient because it is signed by both and witnessed by a third party. Verbal consent should be documented in the patient's medical record along with what was discussed with the patient.

Implied Consent

The patient's behavior suggests consent. For phlebotomy, this is the most common type of consent. For instance, when a patient willingly presents their arm for a blood draw, this action implies consent for the procedure. Implied consent is generally sufficient for low-risk procedures like blood collection or measuring vital signs. In emergencies, implied consent is used when there isn't enough time for full disclosure, with the understanding that informed consent would be obtained if the situation allowed.

Record a Patient's Refusal to Consent

In the event of refusal, it is necessary to document the decision in writing to safeguard both the patient and the provider.

Consent for Minors

A minor is defined as an individual who has not yet attained the age of majority, which is established by the laws of their respective state. Typically, a minor's parent or legal guardian must consent to phlebotomy procedures. However, there are exceptions for certain adolescent clients, such as those who are married, enlisted in the military, or legally emancipated. Individuals who violate this rule are liable for assault and battery.

Patients have the right to decline consent for any reason, whether due to personal, cultural, or religious beliefs or other factors. They are not obligated to justify their refusal. Notify the order of the patient's decision. Sometimes, refusal may stem from a lack of understanding about the procedure. In such cases, further explanation may be needed to address the patient's concerns.

Example of Obtaining Consent for Minors

Phlebotomist: We need to take a small blood sample from [Child's Name] to run some tests that the doctor has ordered. The procedure is quick, and we'll do our best to make it as comfortable as possible for them. Do you have any questions or concerns about the blood draw?

Parent: Will it hurt a lot?

Phlebotomist: We'll use a small needle, and it might feel like a quick pinch. We'll be as gentle as possible, and it will be over before they know it.

After addressing any questions and ensuring that the parent is comfortable with the procedure, the phlebotomist would proceed with the blood draw, provided that the consent form has been signed and all parties are informed.

Conclusion

In summary, securing appropriate consent is a critical step in the phlebotomy process, protecting both the patient's rights and the provider's legal standing. It is essential for health care professionals to understand the different types of consent and to ensure that patients are fully informed about the procedures they will undergo. In cases of refusal, clear documentation and communication with the ordering provider are necessary. Ultimately, respecting patient autonomy and maintaining open communication are key to ethical and legal compliance in medical practice.

3.5 CHALLENGE

1. Match the type of consent with its appropriate description in the context of phlebotomy.
   1. Informed consent
   2. Expressed consent
   3. Implied consent
   4. Consent for minors

A. This consent must be obtained from a parent or legal guardian for individuals under the age of majority, except in cases where the patient is married, in the military, or legally emancipated.

B. This consent requires explicit agreement from the patient, either verbally or in writing, and should be documented in the patient's medical record or through a signed consent form.

C. This consent involves a detailed explanation of the procedure, risks, and outcomes and is typically documented in writing, especially for high-risk or invasive procedures.

D. This consent is assumed when a patient voluntarily cooperates with the procedure, such as presenting their arm for a blood draw, and is sufficient for low-risk procedures.

3.5 CHALLENGE KEY

1. 1 = C. Informed consent is crucial for ensuring that the patient understands the nature and risks of the procedure. It is a comprehensive process that involves educating the patient and obtaining their written consent, particularly for procedures that carry significant risk.

   2 = B. Expressed consent is an explicit agreement from the patient. It can be verbal or written, but it must be documented to provide a record of the patient's understanding and acceptance of the procedure.

   3 = D. Implied consent is based on the patient's actions indicating willingness to undergo the procedure. It is commonly used for straightforward, low-risk procedures like phlebotomy, where the patient's cooperation is a clear sign of consent.

   4 = A. Consent for minors recognizes the legal requirement to obtain consent from a parent or guardian due to the minor's legal inability to make health care decisions on their own. Exceptions apply to certain minors who have been granted adult status under specific circumstances.